

		such service but did not do it herself. [See POS at ROA #86.] This is insufficient. Service may be made on a party's attorney by leaving the papers with a receptionist or anyone in charge of the office. If there is no one with whom to leave the papers, they may be left in a conspicuous place in the office between the hours of 9:00 a.m. and 5:00 p.m. [CCP § 1011(a); see <i>National Advertising Co. v. City of Rohnert Park</i> (1984) 160 CA3d 614, 618-619, 206 CR 696, 698] (a) [9:85.1] Proof of service: A declaration of personal service is required by the person delivering the documents. FORM: Proof of Personal Service—Civil (Judicial Council form POS-020). ⇒ [9:85.2] PRACTICE POINTER: If you are going to use a messenger to serve documents on opposing counsel or parties, the proof of service must be <i>by the messenger</i>. A declaration signed by a secretary who gave the papers to the messenger is hearsay and not sufficient. For the same reason, a declaration by the attorney (e.g., “I caused to be delivered by hand”) is likewise insufficient. If you are relying on personal service, the <i>person who actually served</i> the document must sign the proof of service. Cal. Prac. Guide Civ. Pro. Before Trial Ch. 9(I)-B, §§ 9:85-85.2. The proof of service indicates that “if required” the proof of service by the messenger will be filed. It is required. But it has not been filed. Proof of service is to be filed no later than five court days before the hearing. CRC 3.1300(c). Plaintiff has not responded to the motions, which also raises questions about service. Accordingly, in the absence of proof of service of the motion on Plaintiff and any response by Plaintiff showing that he was served, the motion for summary adjudication and summary judgment is denied. Moving party to give notice.
8	Grace vs. CBRE Capital Markets, Inc	Motion to Strike Motion for Summary Adjudication

	2023-01314705	Plaintiff Bethany Grace’s (“Plaintiff”) Motion to Strike Defendants CBRE Capital Markets, Inc. and Troy Tegeler’s (collectively “Defendants”) Motion for Summary Adjudication is denied. Plaintiff moves, under CCP sections 436, 437c and 1008, for an order striking Defendants’ “renewed Motion for Summary Adjudication of Claims 4, 5, 7, 9, and 10” (the “MSA”). (ROA 706.) CCP section 435, which addresses motions to strike, specifically limits a motion to strike to a “pleading,” which is defined to mean “a demurrer, answer, complaint, or cross-complaint.” (Code Civ. Proc., § 435, subd. (a).) In turn, CCP section 436 provides the court with authority to strike out “any irrelevant, false, or improper matter inserted in <i>any pleading</i>” or “all or any part of <i>any pleading</i> not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436 [emphasis added].) Here, the MSA is not a “demurrer, answer, complaint or cross-complaint.” Thus, it would not be appropriate for the court to strike the MSA under CCP section 436. Whether the MSA constitutes an improper motion for reconsideration shall be decided in ruling on the MSA. (See <i>Patterson v. Sacramento City Unified School Dist.</i> (2007) 155 Cal.App.4th 821, 827 [“To determine whether a second summary judgment motion is proper, courts consider whether it involves ‘newly discovered facts or circumstances or a change of law’”]; accord <i>Bagley v. TRW, Inc.</i> (1999) 73 Cal.App.4th 1092, 1097 [holding second motion for summary judgment or adjudication was “statutorily barred” after comparing the evidence submitted with the first motion to the evidence submitted with the second motion and finding that the moving party did not show any newly discovered facts, circumstances, or law].) Accordingly, Plaintiff’s motion to strike is denied. The MSA remains on calendar for 10/12/26 at 1:30 PM. Defendants shall give notice of the ruling.
9	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Motion to Quash Service of Summons-Southard Parties Here, Moving Parties take issue with the fact that the Trusts were not properly served. Unlike a corporation, a trust is not a legal entity — it is simply a fiduciary relationship with respect to property. Legal title to property owned by a trust is held by the trustee, and a trust is simply a collection of assets and liabilities. (<i>Stoltenberg v. Newman</i> (2009) 179